

5. S-CV-0053983 Gray, Bobby Dean III v. Foster, Steven

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Amended Motion for Leave to File a Fourth Amended Complaint ("4AC")

Plaintiff moves for an order granting leave to file a 4AC to add and delete various factual allegations and to add a defendant. Defendants oppose the motion.

Plaintiff filed his initial complaint on November 18, 2024 and his first amended complaint on January 6, 2025. On May 21, 2025, plaintiff filed his second amended complaint without leave of court. Defendants did not move to strike the unauthorized pleading, but demurred. On October 14, 2025, the court sustained the demurrer to the second amended complaint and afforded plaintiff leave to amend. Plaintiff filed a third amended complaint on October 13, 2025. Defendants again demurred. The court issued a tentative ruling on March 16, 2026 sustaining the demurrer without leave to amend, noting: "While Plaintiff seeks leave to amend if the Demurrer is sustained, Plaintiff fails to demonstrate in what manner the complaint can be further amended and how that amendment will change the legal effect of the pleading." (Law and motion minutes, Mar. 17, 2026.) Oral argument was not requested by either party and the tentative ruling became the court's final ruling. (*Ibid.*) Now plaintiff seeks leave to file a 4AC.

As a preliminary issue, plaintiff's moving papers did not comply with California Rules of Court rule 3.1324 because (1) plaintiff does not identify deletions and additions to the proposed amended pleading by page, paragraph, and line number as required (Cal. Rules of Court, rule 3.1324(a)(2), (3)) and (2) plaintiff's declaration does not include when the facts giving rise to the amended allegations were discovered and why the request for amendment was not made earlier as required (Cal. Rules of Court, rule 3.1324(b)(3), (4)). Plaintiff attempted to address these deficiencies by way of his reply and supplemental declaration filed August 7, 2026. The court will not rule on the motion based on these deficiencies and will instead reach the merits.

Leave to amend a pleading is generally liberally granted when doing so is in the furtherance of justice and would not prejudice the opposing party. (Code Civ. Proc., §§ 473, subd. (a)(1), 576; *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Despite the policy of liberally allowing amendments, whether to grant or deny an amendment is nonetheless "largely within the sound discretion of the trial court" and "its exercise will not be disturbed in the absence of a showing of gross abuse." (*Jew Fun Him v. Occidental Life Ins. Co.* (1948) 88 Cal.App.2d 246, 249.) Denial is not an abuse of discretion where the complaint would not have been sufficient to state a cause of action if the proposed amendments had been allowed. (*Stiebel v. Roberts* (1941) 42 Cal.App.2d 434.)

Here, the court cannot find given the procedural posture of this case that permitting amendment would be in the furtherance of justice and would not prejudice the opposing party. These issues were previously fully litigated in the demurrer to the third amended complaint and the court clearly found that plaintiff fell short of his burden to show how the defects in the pleading could be cured. While plaintiff's supplemental declaration submitted with his reply brief includes that he received defendants' verified discovery responses on October 16, 2025, plaintiff does not explain why the newly discovered information was not part of his opposition to the demurrer to the third amended complaint (which he filed on November 17, 2025), nor does he explain why he did not request oral argument on the tentative ruling sustaining the demurrer without leave.

In substance, plaintiff's motion amounts to a motion for reconsideration pursuant to Code of Civil Procedure section 1008. A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.) Here, plaintiff falls short of his burden to show new or different facts, circumstances, or law that could not have reasonably been discovered and presented in his opposition to the demurrer and at oral argument at the hearing on the demurrer.

Based on the foregoing, the motion for leave to amend is denied.

Defendants may file an application for dismissal pursuant to Code of Civil Procedure section 581(f)(1).

6. S-CV-0054052 Morrill, Rowenna v. City of Rocklin

Motion to be relieved as counsel

Counsel for Plaintiff Rowenna Morrill moves to be relieved as counsel. No response to this motion has been filed.

There is no evidence in the court's file of service of the motion filed August 26, 2026 on the plaintiff. Based on the failure to demonstrate proper and timely service on the plaintiff, the motion is denied without prejudice.